

In the Supreme Court of Bangladesh
High Court Division
(Criminal Appellate Jurisdiction)

Criminal Appeal No. 1315 of 2024

In the matter of:

An appeal under Section 30 of the Special Powers Act, 1974.

-And-

In the matter of:

Amal Kanti Chakma

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Mohammad Jamal Uddin, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 5th March 2024

This is an appeal under Section 30 of the Special Powers Act, 1974.

In this case under Section 19A and 19(f) of the Arms Act, 1978 police allegedly recovered one SMG from the possession of the appellant.

In view of above materials on record we are not inclined to grant bail to the appellant at this point of time but we feel it necessary to pass a direction upon the Trial Court below for conclusion of the trial expeditiously.

Accordingly, we are directing the learned Additional Sessions Judge, Special Tribunal No.02, Rangamati Hill District to conclude the trial of the case within 6(six) months from the date of receipt of this order without allowing any adjournment beyond 15(fifteen) days.

The days covered by the adjournment obtained by the accused be excluded from above period.

But if the learned Judge fails to conclude the trial within above period he will have to explain in writing to this Court through the Registrar General, Supreme Court of Bangladesh as to why the trial could not be concluded.

The learned Judge shall also consider the petition for bail if any filed by the appellant in accordance with law.

The Superintendent of Police, Rangamati is directed to ensure that the prosecution witnesses are produced before the Trial Court on the date to be fixed by the Court without any fail.

Let copies of this order be sent to the Registrar General, Supreme Court of Bangladesh, Additional Sessions Judge, Special Tribunal No.02, Rangamati Hill District and Superintendent of Police, Rangamati at once.

With above direction this appeal is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER